

1 **UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT**

2
3 **SANDRA GREEN,**
4 *Appellant,*

5 v.

6 **MARGARET CONNER,**
7 *Appellee.*

Docket No. 18-9177

Decided: 2001-06-24

Opinion Filed.

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10 **OPINION OF THE COURT**

11 This appeal arises from an order of the District Court granting summary judgment in favor of the appellee. The
12 appellant contends that the court erred in finding no genuine dispute of material fact regarding the contractual
13 ambiguity. Upon review of the record and the relevant precedents, we find the appellant's arguments
14 persuasive.

15 Under the doctrine of promissory estoppel, a party may be bound by a promise if they should have reasonably
16 expected the other party to rely on it, and the other party did in fact rely to their detriment. Here, the evidence
17 shows that the appellee made explicit representations concerning the partnership agreement.

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19 **I. BACKGROUND**

20 We review a grant of summary judgment de novo, applying the same standard as the district court. Summary
21 judgment is appropriate only if the movant shows that there is no genuine dispute as to any material fact and
22 the movant is entitled to judgment as a matter of law. We must view the facts in the light most favorable to the
23 non-moving party.

24 The contract at issue contains an integration clause, stating that the written document represents the final and
25 complete agreement between the parties. While parol evidence is generally inadmissible to contradict the
26 terms of an integrated contract, it may be admitted to resolve an ambiguity that is apparent on the face of the
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1 agreement.

2 3 **II. DISCUSSION**

4 For the foregoing reasons, we conclude that the District Court erred in its application of state contract law.
5 Genuine disputes of material fact remain concerning the intent of the parties. Accordingly, the judgment of the
6 District Court is reversed, and the case is remanded for further proceedings consistent with this opinion.

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8 ¹ Under state law, a promise is binding if the promisor makes a clear representation and the promisee relies upon it to their detriment. See,
9 e.g., *Jonathan Hart v. Walker, Hunter and Eaton*, 552 F.2d 565 (9th Cir. 1916).